

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

KEITH GLEN RICHARDSON,

*Plaintiff,**-against-*THE CITY OF NEW YORK, POLICE OFFICER
PHOENIX C. ASHTON-BUCKNOR, POLICE
OFFICER MARILYN ESTRADA (shield # 13344),
POLICE OFFICER DEREK JUNG (shield # 12660),
POLICE OFFICER "JOHN" MEAD (shield # 24122),
POLICE OFFICER "JANE" MOLLICA (shield # 52),
and POLICE OFFICER EDWARD SACCO (shield #
962).*Defendants.*

Index No.:

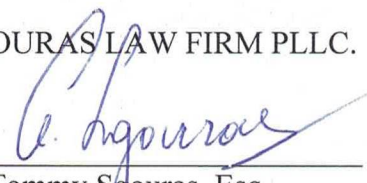
Date of Filing:

Summons*The basis of venue is:**CPLR § 504(3) County Within
City of New York Where Cause
of Action Arose***TO THE ABOVE-NAMED DEFENDANTS:**

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a Notice of Appearance on the Plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service, or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Astoria, New York
October 6, 2020

SGOURAS LAW FIRM PLLC.


A. Tommy Sgouras, Esq.
Attorneys for the Plaintiff
3190 33rd Street, 2nd Floor
Astoria, New York 11106
Tel: (646) 345-7674

TO: THE CITY OF NEW YORK
New York City Law Department
100 Church Street
New York, New York 10007

P.O. Phoenix C. Ashton-Bucknor
5420 Netherland Ave., Apt. B55
Bronx, NY 10471-2318

P.O. Marilyn Estrada (shield # 13344)
NYC Police Department
30th Precinct
451 W 151st St.
New York, NY 10031

P.O. Derek Jung (shield # 12660)
NYC Police Department
30th Precinct
451 W 151st St.
New York, NY 10031

P.O. "John" Mead (shield #28074)
NYC Police Department
30th Precinct
451 W 151st St.
New York, NY 10031

P.O. "Jane" Mollica (shield # 52)
NYC Police Department
30th Precinct
451 W 151st St.
New York, NY 10031

P.O. Edward Sacco (shield # 962)
NYC Police Department
30th Precinct
451 W 151st St.
New York, NY 10031

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

KEITH GLEN RICHARDSON,

*Plaintiff,**-against-*

THE CITY OF NEW YORK, POLICE OFFICER
PHOENIX C. ASHTON-BUCKNOR, POLICE
OFFICER MARILYN ESTRADA (shield # 13344),
POLICE OFFICER DEREK JUNG (shield # 12660),
POLICE OFFICER "JOHN" MEAD (shield # 24122),
POLICE OFFICER "JANE" MOLLICA (shield # 52),
and POLICE OFFICER EDWARD SACCO (shield #
962).

Defendants.

Index No.:

**VERIFIED
COMPLAINT**

The Plaintiff KEITH GLEN RICHARDSON (hereinafter the "Plaintiff") complaining of the above captioned Defendants, THE CITY OF NEW YORK, PHOENIX C. ASHTON-BUCKNOR, POLICE OFFICER MARILYN ESTRADA (shield # 13344), POLICE OFFICER DEREK JUNG (shield # 12660), POLICE OFFICER "JOHN" MEAD (shield # 24122), POLICE OFFICER "JANE" MOLLICA (shield # 52), and POLICE OFFICER EDWARD SACCO (shield # 962) (hereinafter collectively referred to as the "Defendants") by the Plaintiff's attorneys, SGOURAS LAW FIRM PLLC., hereby alleges upon information and belief, that:

PRELIMINARY STATEMENT

1. On or about September 14, 2019, at approximately 11:30 a.m., in the vicinity of the real property known by the postal address 402 West 148th Street, New York, NY 10003, the Plaintiff, without provocation or cause, was unlawfully assaulted and battered by the above captioned police officers of the New York City Police Department, as described at length below, using *inter alia* a conducted electrical weapon (hereinafter "Taser") at close range.

2. The incident was captured in detail on the body-worn cameras (“body cameras”) equipped by the above captioned police officers at the scene, which depict the chaotic, unnecessary, careless, dangerous, reckless, and negligent discharge at close range of a Taser against an incapacitated Plaintiff. As depicted in the body camera footage, the Taser was discharged for the first time in such a manner that the electrical projectiles shot therefrom simultaneously struck and injured other police officers at the scene. The first Taser struck the Plaintiff in or about the back. Seconds later, while the Plaintiff was already incapacitated, the Taser was again discharged for a second time, striking the Plaintiff in the in or about the chest.

THE PARTIES

3. At all times mentioned herein, the Plaintiff was and remains a resident of the State of New York, County of New York.

4. At all times mentioned herein, the Defendant, City of New York (hereinafter referred to as the “CITY OF NEW YORK”), was and remains a body corporate and politic, constituting a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

5. At all times mentioned herein, the Defendant CITY OF NEW YORK maintains the New York City Police Department (hereinafter referred to as the “NYPD”), pursuant to law.

6. At all times mentioned herein, the NYPD was and remains under the supervision and control of the defendant CITY OF NEW YORK.

7. At all times mentioned herein, Defendant Police Officer Phoenix C. Ashton-

Bucknor (hereinafter referred to as "PO ASHTON-BUCKNOR") was a police officer¹ employed by the NYPD.

8. At all times mentioned herein, PO ASHTON-BUCKNOR, in his capacity as a police officer of the NYPD was acting as an agent, servant, and/or employee of the defendant CITY OF NEW YORK.

9. At all times mentioned herein, PO ASHTON-BUCKNOR was assigned to and/or under the command of the 30th precinct located at the address known and designated as 451 W 151st Street, New York, NY 10031.

10. PO ASHTON-BUCKNOR is being sued herein in his individual and official capacity.

11. At all times mentioned herein, Defendant Police Officer Marilyn Estrada – shield no. 13344 (hereinafter referred to as "PO MARILYN ESTRADA") was a police officer employed by the NYPD.

12. At all times mentioned herein, PO MARILYN ESTRADA, in her capacity as a police officer of the NYPD was as acting as an agent, servant, and/or employee of the defendant CITY OF NEW YORK.

13. At all times mentioned herein, PO MARILYN ESTRADA was assigned to and/or under the command of the 30th precinct located at the address known and designated as 451 W 151st Street, New York, NY 10031.

14. PO MARILYN ESTRADA is being sued herein in her individual and official

¹ As used herein, the term "police officer" is intended to refer to New York City Police Department officers in the general and not to any specific rank, title, or position.

capacity.

15. At all times mentioned herein, Defendant Police Officer Derek Jung – shield no. 12660 (hereinafter referred to as “PO DEREK JUNG”) was a police officer employed by the NYPD.

16. At all times mentioned herein, PO DEREK JUNG, in his capacity as a police officer of the NYPD was as acting as an agent, servant, and/or employee of the defendant CITY OF NEW YORK.

17. At all times mentioned herein, PO DEREK JUNG was assigned to and/or under the command of the 30th precinct located at the address known and designated as 451 W 151st Street, New York, NY 10031.

18. PO DEREK JUNG is being sued herein in his individual and official capacity.

19. At all times mentioned herein, Defendant Police Officer “John” Mead – shield no. 28074 (hereinafter referred to as “PO ‘JOHN’ MEAD”) was a police officer employed by the NYPD.

20. The first name of PO “JOHN” MEAD use herein is fictitious and remains unknown to the Plaintiff after making a diligent inquiry to ascertain the same.

21. At all times mentioned herein, PO “JOHN” MEAD, in his capacity as a police officer of the NYPD was as acting as an agent, servant, and/or employee of the defendant CITY OF NEW YORK.

22. At all times mentioned herein, PO “JOHN” MEAD was assigned to and/or under the command of the 30th precinct located at the address known and designated as 451 W 151st Street, New York, NY 10031.

23. PO “JOHN” MEAD is being sued herein in his individual and official capacity.

24. At all times mentioned herein, Defendant Police Officer “Jane” Mollica – shield no. 52 (hereinafter referred to as “PO ‘JANE’ MOLLICA”) was a police officer employed by the NYPD.

25. The first name of PO “JANE” MOLLICA use herein is fictitious and remains unknown to the Plaintiff after making a diligent inquiry to ascertain the same.

26. At all times mentioned herein, PO “JANE MOLLICA, in her capacity as a police officer of the NYPD was as acting as an agent, servant, and/or employee of the defendant CITY OF NEW YORK.

27. At all times mentioned herein, PO “JANE” MOLLICA was assigned to and/or under the command of the 30th precinct located at the address known and designated as 451 W 151st Street, New York, NY 10031.

28. PO “JANE” MOLLICA is being sued herein in her individual and official capacity.

29. At all times mentioned herein, Defendant Police Officer Edward Sacco – shield no. 962 (hereinafter referred to as “PO EDWARD SACCO”) was a police officer employed by the NYPD.

30. At all times mentioned herein, PO EDWARD SACCO, in his capacity as a police officer of the NYPD was as acting as an agent, servant, and/or employee of the defendant CITY OF NEW YORK.

31. At all times mentioned herein, PO EDWARD SACCO was assigned to and/or under the command of the 30th precinct located at the address known and designated as 451 W 151st Street, New York, NY 10031.

32. PO EDWARD SACCO is being sued herein in his individual and official capacity.

33. Upon information and belief, and at all times mentioned herein, the CITY OF NEW YORK was charged with the hiring, training, retention, direction, supervision, discipline, oversight, appointment and promotion of NYPD officers, supervisors and staff in their employ, including but not limited to PO ASHTON-BUCKNOR, PO MARILYN ESTRADA, PO DEREK JUNG, PO "JOHN" MEAD, PO "JANE" MOLLICA, and PO EDWARD SACCO (hereinafter collectively referred to as "the Defendant Police Officers").

34. Upon information and belief, and at all times mentioned herein, the CITY and NYPD, their agents, servants and/or employees, managed, supervised, directed and/or controlled the custody, confinement, care and treatment of those persons arrested, confined and/or otherwise detained by NYPD officers, including but not limited to the Plaintiff herein.

STATEMENT OF FACTS

35. On or about September 14, 2019, at approximately 11:00 a.m., in the vicinity of the real property known by the postal address 402 West 148th Street, New York, NY 10003 (the "subject premises"), while the Plaintiff was lawfully within the subject premises, the aforesaid Defendant Police Officers, acting individually, and as agents and employees of the CITY OF NEW YORK and the NYPD, unlawfully stopped, questioned, assaulted, and battered the Plaintiff without provocation or cause, including, but not limited to, repeatedly discharging a Taser against Plaintiff without reason or provocation.

36. On or about September 14, 2019, the Plaintiff was extra-judicially arrested by the Defendant Police Officer and falsely detained, confined, and imprisoned for a period of approximately six (6) days by the City of New York, New York City Police Department, their agents, servants and employees. Due to false and perjurious statements made by the Defendant Police Officers, the Plaintiff was falsely arrested and charged with purported violations of

N.Y.P.L. 120.00 01 (Assault W/int Cause Phys Injury) and 205.30 00 (Resisting Arrest).

37. As a result of the foregoing unlawful, assault and battery, tasing, false arrest and false imprisonment the Plaintiff suffered violations of his constitutional, statutory and common law rights, physical, psychological and emotional injuries, and pecuniary loss.

38. All of the foregoing conduct was under color of law and without a warrant or probable cause.

39. The CITY OF NEW YORK including but not limited to the aforesaid Defendant Police Officers, individually and/or in concert or conspiracy, covered-up their unlawful conduct by filing or causing to be filed false official documents, gave false sworn statements, reports and/or testimony regarding the aforesaid incidents, resulting in the Plaintiff being cited, detained, arrested, imprisoned and prosecuted, thereby depriving and violating the Plaintiff's aforementioned due process and civil rights, liberties, privileges and immunities, and causing the Plaintiff to sustain further physical, psychological and emotional injuries.

40. The foregoing deprived and violated the Plaintiff's aforementioned due process and civil rights, liberties, privileges and immunities, and caused the claimant to sustain physical, psychological and emotional injuries.

41. The conduct of the Defendant Police Officers was deliberate, intentional, reckless, negligent, wanton, malicious, and served no legitimate penological or judicial interest, and was with deliberate indifference to and without legal, reasonable or probable cause, all in violation of the Plaintiff's rights.

42. The Defendants' conduct was negligent, reckless, careless and/or intentional in the instance, including but not limited to their failures to properly hire, train, retain, supervise and control their police officers; their policy and practice of turning a blind eye to claims of

brutality, corruption, cover-ups, and submissions of false statements, investigations and reports; their failure to faithfully investigate claims of retaliatory, abusive and/or unlawful tactics similar to those made herein and meaningfully punish offenders; and in being otherwise negligent, reckless, careless and/or purposeful in the instance, thereby causing the claimant to suffer the injuries and constitutional and statutory violations aforesaid, as well as suffer physical, emotional and psychological injuries and pecuniary loss.

43. The Defendant Police Officers did not have probable cause to arrest Plaintiff.

44. The Defendant Police Officers did not have a warrant to arrest Plaintiff.

45. The Defendant Police Officers' use of the taser and physical force against the Plaintiff was without reason or provocation.

46. The Defendant Police Officers' use of the taser and physical force against the Plaintiff was performed knowingly, intentionally, and willfully.

47. The Defendant Police Officers' use of the taser and physical force against the Plaintiff was performed negligently and recklessly.

48. At no time during the foregoing events did the Defendant Police Officers have probable cause to use the taser and physical force against the Plaintiff.

49. At the time of the aforesaid use of the taser and physical force, Plaintiff was not a threat, immediate or otherwise, to the Defendant Police Officers or the public.

50. Plaintiff spent at least six (6) days in police custody.

51. As a result of the foregoing, Plaintiff suffered physical, psychological and emotional injuries, loss of liberty, and pecuniary loss.

52. On or about December 12, 2019, a Notice of Claim was timely filed against the City of New York setting forth the time, place and manner in which plaintiff's injuries were sustained, was duly filed with the City of New York.

53. A least thirty (30) days have elapsed since the service of such notice; that adjustment or payment thereof has been neglected or refused, although same was duly demanded; and this action has been commenced within one year and ninety days after the happening of the subject occurrence.

54. A hearing pursuant to General Municipal Law §50-h was completed.

**AS AND FOR A FIRST CAUSE OF ACTION:
ASSAULT AND BATTERY**

55. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs "1" through "54", inclusive of this Complaint, as if same were fully set forth herein.

56. On or about September 14, 2019, the Plaintiff was lawfully present in the real property known as 402 West 148th Street, New York, NY 10003.

57. On or about September 14, 2019, the Plaintiff was stopped, detained, assaulted and battered by the Defendant Police Officers, who were acting within the scope of their employment with the CITY OF NEW YORK and the NYPD.

58. On or about September 14, 2019, as stated above, the Plaintiff was physically restrained, twice struck with a Taser, handcuffed, and arrested by the Defendant Police Officers.

59. Upon information and belief, the Taser was discharged both times by PO Ashton-Bucknor.

60. On or about September 14, 2019, the aforesaid assault and battery, and the repeated discharge of the Taser against the Plaintiff, on both occasions was unprovoked by the Plaintiff.

61. On or about September 14, 2019, the aforesaid assault and battery and repeated discharge of the Taser against the Plaintiff was done in violation of NYPD training, procedures, and guidelines.

62. On or about September 14, 2019, the aforesaid assault and battery and repeated discharge of the Taser against the Plaintiff was performed knowingly, willfully, and intentionally.

63. On or about September 14, 2019, the aforesaid assault and battery and repeated discharge of the Taser against the Plaintiff was performed extra judiciously, without a warrant.

64. On or about September 14, 2019, the aforesaid assault and battery against the plaintiff was performed without probable cause.

65. The aforesaid assault and battery and repeated discharge of the Taser against the Plaintiff was excessive, unnecessary, unprovoked, unjustified, and unlawful.

66. As a result of the foregoing, Plaintiff was subjected to a deprivation of rights, physical, psychological and emotional injuries, pain and suffering, pecuniary loss, and has been otherwise damaged thereby.

**AS AND FOR A SECOND CAUSE OF ACTION:
FALSE ARREST**

67. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs "1" through "66", inclusive of this Complaint, as if same were fully set forth herein.

68. On or about September 14, 2019, and at all times hereinafter mentioned, the Defendant Police Officers were working within the scope of their employment and authority with the CITY OF NEW YORK and NYPD when they questioned, stopped, detained, physically restrained, repeatedly Tasered, handcuffed, and arrested the Plaintiff.

69. On or about September 14, 2019, and at all times hereinafter mentioned, the arrest and confinement was without probable cause, not based on reasonable grounds, and not founded upon an arrest warrant.

70. As a result of the foregoing Plaintiff was arrested and confined against his will for a period of at least six (6) days.

71. As a result of the aforesaid false arrest and confinement, plaintiff sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit, and suffered emotional and physical distress and injuries.

72. By reason of the foregoing the plaintiff sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION:
FALSE IMPRISONMENT**

73. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs "1" through "72", inclusive of this Complaint, as if same were fully set forth herein.

74. On or about September 14, 2019, and at all times hereinafter mentioned and upon information and belief, the Defendant Police Officers were acting within the scope of their employment with the CITY OF NEW YORK and NYPD when, without justification or probable cause, they caused the imprisonment of the Plaintiff.

75. The Defendant Police Officers, while acting within the scope of their employment with the CITY OF NEW YORK and NYPD, intentionally caused the Plaintiff to be confined against his will and said confinement was not privileged.

76. As a result of the foregoing, the Plaintiff was caused to be confined for a period of at least six (6) days.

77. As set forth above, the Defendants' arrest, imprisonment and prosecution of plaintiff was malicious, unlawful and not based upon a proper warrant, probable cause or legal justification to seize the person and/or property of the plaintiff, and was therefore an unlawful arrest, detention, imprisonment, and prosecution.

78. By reason of the foregoing, plaintiff sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION:
MALICIOUS PROSECUTION**

79. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs "1" through "78", inclusive of this Complaint, as if same were fully set forth herein.

80. On or about September 14, 2019, at all times hereinafter mentioned and upon information and belief, the Defendant Police Officers, while acting within the scope of their employment with the CITY OF NEW YORK and NYPD, without justification and without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

81. On or about September 14, 2019, and at all times hereinafter mentioned, the Defendant Police Officers, while acting within the scope of their employment with CITY OF NEW YORK and NYPD, maliciously prosecuted the plaintiff.

82. On or about September 14, 2019, and at all times hereinafter mentioned, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities, and suffered emotional and physical distress and injury.

83. The Defendants, their agents, servants and/or employees, including but not limited to the Defendant Police Officers, knew or should have known through the exercise of reasonable care and proper police procedure that the purported investigation into this matter was flawed and incomplete.

84. The Defendants, their agents, servants and/or employees, including but not limited to the defendant police officers, willfully, negligently and wrongfully continued to prosecute the Plaintiff for alleged violations of the Penal Law of the State of New York even though the defendants knew or should have known of facts and circumstances that would have lead a reasonably prudent police officer to conclude that the criminal complaint upon which said criminal prosecution was based, contained material falsehoods and was otherwise incomplete and improper, and that the continued prosecution of the plaintiff was, therefore, improper under the circumstances.

85. As set forth above, the Defendant Police Officers intentionally, knowingly, recklessly, negligently, and with malice caused the commencement of a criminal prosecution against plaintiff in the Criminal Court of the City of New York, County of New York, upon the filing of an accusatory instrument without probable cause.

86. In commencing and continuing the said malicious prosecution, the Defendant Police Officers caused Plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York

87. By reason of the foregoing, the Plaintiff sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION:
NEGLIGENCE**

88. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs "1" through "87", inclusive of this Complaint, as if same were fully set forth herein.

89. On or about September 14, 2019, the Plaintiff was lawfully present in the real property known as 402 West 148th Street, New York, NY 10003.

90. On or about September 14, 2019, the Defendant Police Officers and the CITY OF NEW YORK owed a duty of care to the Plaintiff at such time that the Plaintiff was stopped, detained, and questioned.

91. On or about September 14, 2019, the Defendant CITY OF NEW YORK breached the duty of care owed to the Plaintiff and were negligent in the instance in the hiring, training, appointment, supervision and promotion of the Defendant police officers and their supervisors; in failing to protect the safety, health and welfare of the Plaintiff; in failing to properly train and supervise the Defendant police officers regarding the appropriate and proper use and discharge of conductive energy weapon including the Taser involved herein; improperly supervising Defendant police officers in the field; and was otherwise negligent, careless and reckless in the instance.

92. On or about September 14, 2019, the Defendant CITY OF NEW YORK and the Defendant Police Officers breached the duty of care owed to the Plaintiff and were negligent in the instance in setting a trap for the Plaintiff; in violating the Plaintiff's civil, statutory and common law rights; in infringing upon the freedoms afforded to the Plaintiff; in unlawfully detaining and restraining the Plaintiff without probable cause or exigent circumstances; in failing to protect Plaintiff; in causing, creating and/or allowing unlawful conditions to be and remain; in failing to give the Plaintiff notice and/or warning; in causing and/or allowing the Plaintiff to be injured; in causing and creating a dangerous condition conducive to causing injury; in creating and allowing a nuisance to exist; in failing to provide for the safety of the Plaintiff; in failing to protect the plaintiff in each and every instance set forth above; in causing,

permitting and/or allowing the Plaintiff to be assaulted and battered; in arresting Plaintiff without probable cause and under false pretenses; in detaining and/or imprisoning Plaintiff without legal cause; in causing, permitting and/or allowing the Plaintiff to be assaulted, battered, tasered, arrested, falsely imprisoned and maliciously prosecuted; in failing to properly use force; in failing to properly discharge a conductive electric weapon including the Taser herein; in failing to properly discharge a conductive electrical weapon including the Taser herein in a public place; in violating the laws of the State and City of New York in the use of force; and the Defendants were otherwise negligent, careless and reckless in the instance.

93. As a result of the foregoing, the Defendants caused the Plaintiff to suffer physical, psychological and emotional injuries, pain and suffering, pecuniary loss, and has been otherwise damaged.

**AS AND FOR A SIXTH CAUSE OF ACTION:
VIOLATION OF NEW YORK CONSTITUTION AND STATUTES**

94. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs "1" through "93", inclusive of this Complaint, as if same were fully set forth herein.

95. As set forth above, Plaintiff was deprived by Defendants of his rights to free speech and association, to be free from unlawful search and seizure, to be free from gratuitous and excessive force and punishment, to be free from cruel and unusual punishment, to be free from retaliation and retribution, and to due process of law, as guaranteed to her by the constitution and statutes of the City and State of New York and the Charter of the City of New York.

96. The aforesaid violations, and the failures of the CITY OF NEW YORK and its supervisory personnel to take appropriate steps to curb the widespread pattern of same or

similar conduct by their officers violated Plaintiff's rights under the New York State Constitution.

97. The Defendants' conduct complained of herein violated Plaintiff's rights secured by the Constitution of the State of New York, Article 15 of the New York State Executive Law ("NYS Human Rights Law"), Section 40 *et seq.* of the New York State Civil Rights Law (the "NYS Civil Rights Law"), New York Corrections Law, and Sections 8-107 *et seq.*, 8-502 *et seq.* and 8-603 *et seq.* of the Administrative Code of the City of New York (the "City Human Rights Law")

98. As a result of the foregoing, Plaintiff was caused to suffer physical, psychological and emotional injuries, pain and suffering, pecuniary loss, and has been otherwise damaged.

**AS AND FOR A SEVENTH CAUSE OF ACTION:
VIOLATION OF CIVIL RIGHTS**

99. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs "1" through "98", inclusive, of this Complaint, as if same were fully set forth herein.

100. The actions of Defendants heretofore described resulting from the September 14, 2019, false arrest, detention, assault and battery, and imprisonment of the plaintiff constitutes an unlawful arrest, imprisonment, and unreasonable search and seizure, which deprived plaintiff of his right, privileges and immunities as granted under the United States Constitution, Amendments One, Four, Five and Fourteen, the New York State Constitution, the Civil Rights Act, 42 U.S.C. § 1981, 1983, 1985, 1986 and 1988, and the complained of conduct was either the result of an official policy or unofficial custom, including but not limited to, the policies and customs concerning the hiring, training, supervision, retention and discipline of the CITY OF NEW YORK and NYPD's agents, servants and/or employees.

101. Defendants established a custom, policy and/or practice of encouraging, approving and/or tolerating the use by the NYPD of unreasonable searches and seizures, excessive force and acts of misconduct against civilians and subsequent attempts to conceal such actions by failing to adequately train, supervise and discipline its agents, employees and officers.

102. Defendants were deliberately indifferent to the use of improper procedures in the detention and arrest of civilians and established a custom or policy and/or practice of encouraging, approving and/or tolerating the use of said improper procedures by the NYPD and subsequent attempts to conceal such actions by failing to adequately train, supervise and discipline their agents, servants and/or officers.

103. Defendants have deprived Plaintiff of his liberty in violation of his Civil and Constitutional rights as set forth in the United States Constitution, 42 U.S.C. § 1983 and Constitution of the State of New York.

104. Defendants conspired with each other and acted in concert to discriminate against and deprive the plaintiff of his Constitutional and Civil rights.

105. Defendants established a custom, policy and/or practice of encouraging, approving and/or tolerating the use by the NYPD of unreasonable searches and seizures, and acts of misconduct against civilians and subsequent attempts to conceal such actions by failing to adequately train, supervise and discipline its agents, employees and officers.

106. Defendants were deliberately indifferent to the use of improper procedures in the detention and arrest of civilians and established a custom or policy and/or practice of encouraging, approving and/or tolerating the use of said improper procedures by the NYPD

and subsequent attempts to conceal such actions by failing to adequately train, supervise and discipline their agents, servants and/or officers.

107. Defendants have deprived plaintiff of his liberty in violation of his Civil and Constitutional rights as set forth in the United States Constitution, 42 U.S.C. § 1983 and Constitution of the State of New York.

108. Defendants conspired with each other and acted in concert to discriminate against and deprive the plaintiff of his Constitutional and Civil rights.

109. The supervisors and policy making officers, Defendants, THE CITY and NYPD, and the Defendant Police Officers aided in the unlawful arrest of the plaintiff on September 14, 2019, as a matter of policy are deliberately indifferent to said practices and have failed to take steps to terminate the herein above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

110. The defendant CITY OF NEW YORK and NYPD have failed to properly or effectively train its agents, servants and/or employees, including the Defendant Police Officers who aided in the unlawful arrest of plaintiff on September 14, 2019 with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

111. The defendant CITY OF NEW YORK and NYPD, have sanctioned the policy and practices heretofore described through their deliberate indifference to the effects of such policy and practices upon the constitutional rights of the plaintiff and others similarly situated.

112. The Defendants' motivations were in contravention of the United States Constitution and the Constitution of the State of New York.

113. That the unlawful conduct of the Defendants, their agents, servants and/or employees and each of them, deprived Plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: (a) the right of Plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and (b) the right of plaintiff to not be deprived of life, liberty or property without due process of law; and (c) the right of plaintiff to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

114. By reason of the foregoing, the Plaintiff has been damaged and suffered serious and severe permanent physical injuries, emotional distress and emotional harm as a result of these deprivations of constitutional and civil rights.

115. As a result, the Defendants became liable to the Plaintiff in an amount to be determined by the trier of fact, but exceeding the jurisdictional limitations of all lower courts.

116. As a result of the foregoing, Plaintiff is entitled to compensatory damages, together with attorney's fees, costs, expert's fees, and disbursements.

**AS AND FOR AN EIGHTH CAUSE OF ACTION:
INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

117. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs "1" through "116", inclusive, of this Complaint, as if same were fully set forth herein.

118. The conduct of the Defendant Police Officers was intentional, malicious and excessive, and served no reasonable or legitimate police interest.

119. The conduct of the Defendant Police Officers was negligent and served no reasonable or legitimate police interest.

120. The Defendants' intentional, reckless and/or negligent conduct constituted misconduct of an egregious and outrageous nature that exceeds all bounds usually tolerated by society and unreasonably endangered plaintiff's physical safety.

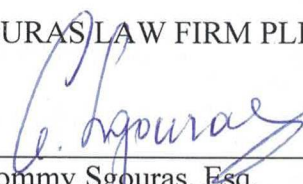
121. As a result of the foregoing, the Plaintiff suffered and continues to suffer severe and serious emotional injuries.

122. This action falls within one or more of the exceptions set forth in CPLR §1602.

WHEREFORE, Plaintiff requests compensatory damages against all Defendants in an amount to be determined at trial, punitive damages against the individual Defendants in an amount to be determined at trial, attorneys' fees, costs and disbursements pursuant to law, and such other and further relief as this Court deems just and proper.

Dated: Astoria, New York
October 6, 2020

SGOURAS LAW FIRM PLLC.



A. Tommy Sgouras, Esq.
Attorneys for the Plaintiff
3190 33rd Street, 2nd Floor
Astoria, New York 11106
Tel: (646) 345-7674

VERIFICATION

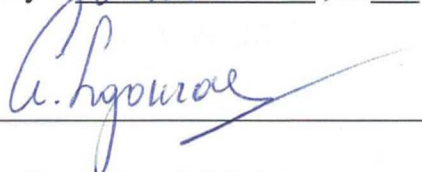
STATE OF NEW YORK

COUNTY OF QueensKeith Glen Richardson, being duly sworn hereby deposes and says:

I Keith Glen Richardson, am the Plaintiff in the above-entitled action. I have read the foregoing Complaint and know the contents thereof. The contents are true to my own knowledge, except as to matters therein stated to be alleged upon information and belief, and as to those matters I believe them to be true.



Sworn to before me on this

6th day of October, 2020

ATHANASIOS TOMMY SGOURAS
NOTARY PUBLIC, STATE OF NEW YORK
Registration No. 02SG6275401
Qualified in Queens County
Commission Expires January 28, 2021

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

KEITH GLEN RICHARDSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
PHOENIX C. ASHTON-BUCKNOR, POLICE
OFFICER MARILYN ESTRADA (shield # 13344),
POLICE OFFICER DEREK JUNG (shield # 12660),
POLICE OFFICER "JOHN" MEAD (shield # 24122),
POLICE OFFICER "JANE" MOLLICA (shield # 52),
and POLICE OFFICER EDWARD SACCO (shield #
962).

Defendants.

Index No.:

Date of Filing:

Summons and Verified Complaint

SGOURAS LAW FIRM PLLC

Attorney for the Plaintiff

3190 33rd Street, 2nd Floor

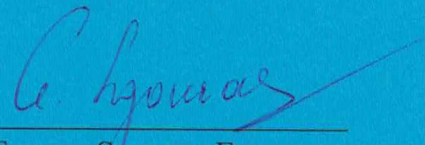
Astoria, New York 11106

T (646) 345-7674

I, Athanasios Tommy Sgouras, Esq., certify that to the best of my knowledge, upon information and belief, formed after an inquiry reasonable under the circumstances, certify that the presentation of the foregoing paper or the contentions therein are not frivolous as defined in subsection (c) of Section 130.01 of the Rules of the Chief Administrator of the Courts.

Dated: Astoria, New York

October 6, 2020


A. Tommy Sgouras, Esq.